

Affirmed on the Reasons Below:

Appellate Review in 15,383 Published Saudi Commercial
Judgments

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Abstract

Saudi commercial judgments are published with the appellate decision attached to the judgment it reviews, giving 13,924 matched pairs of the same dispute at two levels. 74.4 per cent of appellate judgments give no reasons of their own, affirming on the reasons below; whether a circuit writes is not independent of what it decides, rising from 26.2 per cent when it affirms to 34.3 when it reverses. Of appeals reaching the merits, 10.8 per cent disturb the judgment. A logistic model on the 9,563 decided between 1439 and 1444 — the window in which the record is mature enough to read — finds the procedural share of a judgment's own citations the strongest protection against disturbance (odds ratio 0.74), while its length, its citation count and whether it wrote reasons predict nothing.

Keywords: appellate review; judicial reason-giving; empirical legal studies; court administration; Saudi Arabia

1 Introduction

2 Related work

3 Data

3.1 A record that carries both levels

3.2 What the published record is

4 Method

4.1 Reading the appellate disposition

4.2 Whether the appeal reasoned

4.3 Modelling disturbance

5 Results

5.1 What appeals do

5.2 Reason-giving at the second instance

5.3 Reasoning compared, where both levels reasoned

5.4 What predicts disturbance

6 Threats to validity

7 Discussion

8 Conclusion

References

Availability of data and code

Declarations